

**NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, COURT-I, CHANDIGARH**

**IA(I.B.C)/1343(CH)2026
In
CP (IB) No. 36/Chd/Pb/2026**

*[Application under Rule 8 of the
Insolvency and Bankruptcy
(Application to Adjudicating
Authority) Rules, 2016]*

IA(I.B.C)/1343(CH)2026:

M/s. Tegral India Private Limited
Through its Authorized Representative Mr. Rajesh Kushte
Having Registered Office at:
901, Ackruti Star, Central Road, MIDC,
Andheri (East), Mumbai, Maharashtra – 400093

....APPLICANT

Versus

M/s. Aastha Autotech Private Limited
Having Registered Office at:
E-694, Phase VIII, Focal Point,
Ludhiana, Punjab, India – 141010

....RESPONDENT/CORPORATE DEBTOR

IN THE MATTER OF:-

M/s. Tegral India Private Limited
Through its Authorized Representative
Mr. Rajesh Kushte

... Petitioner/Operational Creditor

Versus

M/s. Aastha Autotech Private Limited

...Respondent/Corporate Debtor

Order delivered on: 24.09.2026

**CORAM: MR. KHETRABASI BISWAL, HON'BLE MEMBER (JUDICIAL)
MR. SHISHIR AGARWAL, HON'BLE MEMBER (TECHNICAL)**

Present:

For the Applicant : Mr Gaurav Jalendra, Advocate

For the Respondent : Mr Harkirat Singh Ghuman, Advocate

ORDER

The present Application, **IA(I.B.C)/1343(CH)2026**, has been filed by the Applicant/Operational Creditor under Rule 8 of the Insolvency and Bankruptcy (Application to Adjudicating Authority) Rules, 2016, seeking withdrawal of the Company Petition bearing **CP(IB) No. 36/Chd/Pb/2026**, filed under Section 9 of the Insolvency and Bankruptcy Code, 2016, against the Respondent/Corporate Debtor.

2. It is stated that the Company Petition, seeking initiation of Corporate Insolvency Resolution Process against the Corporate Debtor for an alleged outstanding amount of Rs. 1,46,64,585.61/-, is yet to be admitted by this Tribunal. During its pendency, the parties amicably resolved the dispute and executed a **Settlement Agreement dated 01.09.2026**. In view of the settlement, the Applicant no longer wishes to press the Company Petition and prays for its withdrawal.
3. Pursuant to this Tribunal's order dated 09.09.2026, whereby three days' time was granted to explain the inapplicability of the

amended Section 12A(2) of the Code, the Applicant has filed its Written Submissions contending that Section 12A, by its own terms, applies only to "***an application admitted under section 7, 9 or 10,***" and since the present petition is not admitted, its withdrawal is governed solely by the Rule 8 of the AAA Rules, 2016, which empowers this Tribunal to permit withdrawal of an application made under Rules 4, 6 or 7 of the said rules on a request by the applicant before admission.

4. Having perused the Application, the Settlement Agreement dated 01.09.2026 annexed thereto, and the said Written Submissions, and finding the request bona fide and made prior to admission of the Company Petition, we find the submission well-founded and are satisfied that the same merits acceptance.
5. Accordingly, **IA(I.B.C)/1343(CH)2026** stands ***allowed*** and **CP(IB) No. 36/Chd/Pb/2026** filed against the Respondent/Corporate Debtor, M/s. Aastha Autotech Private Limited stands ***dismissed as withdrawn.***

SD/-

SD/-

(SHISHIR AGARWAL)
MEMBER (TECHNICAL)

Yuvraj

(KHETRABASI BISWAL)
MEMBER (JUDICIAL)